

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lex Colleen	Team: Squad #03	CCRB Case #: 202308390	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 09/03/2023 7:58 PM	Location of Incident: 231st Street and Merrick Boulevard	18 Mo. SOL 3/3/2025	Precinct: 105		
Date/Time CV Reported Tue, 09/05/2023 4:03 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 09/05/2023 4:03 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Jonathan Pesce	11602	962686	105 PCT
2. PO Hananel Wanunu	10899	956328	105 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Jonathan Pesce	Abuse: Police Officer Jonathan Pesce stopped § 87(2)(b)	A . Within NYPD Guidelines
B . PO Hananel Wanunu	Abuse: Police Officer Hananel Wanunu stopped § 87(2)(b)	B . Within NYPD Guidelines
C . PO Jonathan Pesce	Abuse: Police Officer Jonathan Pesce failed to provide § 87(2)(b) with a business card.	C . Substantiated
D . PO Hananel Wanunu	Abuse: Police Officer Hananel Wanunu failed to provide § 87(2)(b) with a business card.	D . Substantiated

Case Summary

§ 87(2)(b) filed this complaint by phone with the CCRB on September 5, 2023.

On September 3, 2023, at 7:58 p.m., at 231st Street and Merrick Boulevard in Queens, § 87(2)(b) was sitting inside an illegally parked vehicle. He was stopped by PO Hananel Wanunu and PO Jonathan Pesce, both of the 105th Precinct (**Allegations A-B: Abuse of Authority, Within NYPD Guidelines**). PO Pesce and PO Wanunu failed to offer § 87(2)(b) a business card (**Allegations C-D: Abuse of Authority, Substantiated**). No summons or arrest resulted from this incident.

Body Worn Camera (BWC) videos were obtained from NYPD Legal (**Board Review 01**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Jonathan Pesce stopped § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Hananel Wanunu stopped § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Jonathan Pesce failed to provide § 87(2)(b) with a business card.

Allegation (D) Abuse of Authority: Police Officer Hananel Wanunu failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) testified that he was parked with his car running in front of the barber shop at 231-30 Merrick Boulevard, in Queens. He was there for about two minutes when he was approached by PO Pesce and PO Wanunu. PO Pesce asked for his license and registration. He told PO Pesce that he was already stopped twice while driving the same vehicle and that nothing was wrong with the car. PO Pesce explained to him that they stopped him because his license plate was obstructed. He provided his license and registration. PO Pesce and PO Wanunu went back to their vehicle. When they returned PO Pesce returned his documents and told him, "I see that you already got a summons for plate cover." § 87(2)(b) responded, "Yes." PO Pesce then told him that he "put something onto the plate" and he responded, "I didn't put anything on the plate. That's how I got the plate from the dealership." He and PO Pesce went back and forth for about five to ten minutes. The officers ultimately left without issuing a summons. § 87(2)(b) was not offered a business card (**Board Review 02**).

In PO Pesce's BWC, at 01:00, he and PO Wanunu approach § 87(2)(b) running vehicle. A bus stop sign is visible ahead of his vehicle. PO Pesce asks for his license, insurance, and registration. § 87(2)(b) mentions having been stopped on other occasions. At 1:56, PO Pesce tells § 87(2)(b) that he has a cover on his license plate. § 87(2)(b) explains he has the cover on the plate to protect it from the rain. The officers collect § 87(2)(b) information and return to their vehicle. At 3:43, PO Pesce tells PO Wanunu that the vehicle registration is in Pennsylvania. PO Wanunu runs the plate and tells PO Pesce that no records were found. PO Pesce and PO Wanunu return to § 87(2)(b) vehicle. At 4:35, PO Pesce tells § 87(2)(b) to shut off the car and hand him the keys. PO Wanunu asks § 87(2)(b) which state the vehicle is registered in. § 87(2)(b) says, "Arizona" (**Board Review 01**).

In PO Wanunu's BWC video, at 02:39, it is apparent that there is a cover on § 87(2)(b) rear license plate. Starting at 06:30, PO Wanunu reiterates to § 87(2)(b) that he is parked in a bus stop and has an illegal license plate cover. PO Wanunu explains that he was eventually able to verify that his registration was valid (this was after § 87(2)(b) clarified that the registration is in Arizona). The officers return § 87(2)(b) paperwork and return to their vehicle (**Board Review 01**).

PO Pesce and PO Wanunu provided generally consistent testimony (**Board Review 03-04**). They were on patrol and observed § 87(2)(b) vehicle parked in a bus stop with a plastic cover over a temporary out of state license plate. The officers approached § 87(2)(b) explained the reason for the stop, and requested his driving credentials. The officers utilized their discretion in determining not to issue a summons. Neither officer provided a business card.

PO Pesce said he did not offer a business card because it was not required. Business cards must be offered when requested, during a DWI checkpoint, level 3 stops, and searches (**Board Review 04**).

PO Wanunu explained that certain police interactions, such as stops, require officers to provide a business card. Business cards are not required in vehicle stops, which was why he did not offer one (**Board Review 03**).

New York State Vehicle Traffic Law, Article 14, Section 402(b) states that “Number plates shall be kept clean and in a condition so as to be easily readable and shall not be covered by glass or any plastic material, and shall not be knowingly covered or coated with any artificial or synthetic material or substance that conceals or obscures such number plates or that distorts a recorded or photographic image of such number plates” (**Board Review 05**).

No person shall stand or park a vehicle other than an authorized bus in its assigned bus stop when any such stop has been officially designated and appropriately posted except that the operator of a vehicle may temporarily stand therein for the purpose of expeditiously receiving and discharging passengers provided such standing does not interfere with any bus about to enter or leave such stop. NYC Administrative Code, Section 4-08(c)(3) (**Board Review 10**).

The approach of a stationary vehicle that is illegally parked is subject to the first level of the DeBour analysis and must be supported by an objective, credible reason, not necessarily indicative of criminality. In such a circumstance, officers may ask the suspects for their names, addresses, points of origin and destination, and the purpose of their trip. Additional factors, such as finding that the vehicle is unregistered, may support an escalation to a greater level of intrusion. People v. Valerio, 274 A.D.2d 950 (2000) (**Board Review 06**).

A level one inquiry may not involve pointed questions which are intimidating or accusatory in tone. Level one inquiries may not create a reasonable belief that the approached person is an investigatory target. Officers ordering a defendant to exit the car, remain in the car, or refrain from moving the car may give the defendant reason to believe they are an investigatory target. People v. Thomas, 19 A.D.3d 32 (2005) (**Board Review 07**).

A business card is to be offered for a law enforcement activity, except in cases when a summons is issued or an arrest is made. Law enforcement activities include noncustodial questioning of individuals suspected of criminal activity and stops where an officer has an individualized, reasonable suspicion that the person stopped has committed, is committing, or is about to commit a crime and where a reasonable person would not feel free to end the encounter. NYPD Administrative Guide, Procedure 304-11; NYC Administrative Code, Section 14-174 (**Board Review 08-09**).

§ 87(2)(g) § 87(2)(b) was illegally parked in a bus stop and had an illegal plate cover, § 87(2)(g)

(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations A-B** be closed as **Within NYPD Guidelines**.

§ 87(2)(g)

Therefore, it is recommended that **Allegations C-D** be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b)
- PO Hananel Wanunu has been a member of service for 10 years and has been a subject in three CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g)
- PO Jonathan Pesce has been a member of service for seven years and has been a subject in five CCRB complaints and nine allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of October 19, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (**Board Review 12**).
- § 87(2)(b) [§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 3

Investigator: Lex Colleen
Signature

Investigator Colleen
Print Title & Name

1/12/2024
Date

Squad Leader: Rolando Vasquez
Signature

IM Rolando Vasquez
Print Title & Name

1/26/2024
Date

